

1. MILLER, ET AL. v. NEWREZ LLC, 25CV2192**Plaintiffs' Motion to Compel**

Plaintiffs Alexander Miller and Edward Healey (collectively, "plaintiffs"), who are both proceeding *pro per*, seek to compel defendant Renovo Financial, LLC's ("defendant") verified responses to plaintiffs' Special Interrogatories, Request for Production, and Request for Admission, all Set One. Plaintiffs' motion also includes a request for monetary sanctions.

Plaintiffs' discovery requests were directed to the named defendant, Renovo Financial, LLC. However, defendant's opposition states that Renovo Financial, LLC is a misnomer; no such entity actually exists. Notably, defendant acknowledges it is the party intended to be charged. What is concerning is that in its responsive pleading, filed December 9, 2025, defendant identified itself as Renovo Financial, LLC, without mentioning that the name plaintiffs used in their complaint was incorrect. And, defendant continues to identify as Renovo Financial, LLC — even in its opposition to the instant motion — which is misleading to both plaintiffs and the court. A defendant must exercise care when responding. A California defendant sued under an incorrect name should file a responsive pleading using their correct legal name followed by the phrase "erroneously sued as [name used by plaintiff]," answer the substantive allegations of the complaint, and, if necessary, seek or prompt an amendment to the complaint to correct the misnomer.

The court orders defendant to file and serve a notice of misnomer, identifying its correct name, no later than August 7, 2026.

Under the circumstances, the court finds it appropriate to deny plaintiffs' motion to compel without prejudice. Plaintiffs' moving papers acknowledge defendant informed plaintiffs of the misnomer. Additionally, plaintiffs acknowledged the misnomer issue in the stipulation filed June 15, 2026. Having ordered defendant to file a notice of

misnomer, plaintiffs will be able to amend their pleading with defendant's correct name and re-serve their discovery requests upon defendant.

TENTATIVE RULING # 1: PLAINTIFFS' MOTION TO COMPEL IS DENIED WITHOUT PREJUDICE. THE COURT, ON ITS OWN MOTION, ORDERS DEFENDANT RENOVO FINANCIAL, LLC TO FILE AND SERVE A NOTICE OF MISNOMER, IDENTIFYING ITS CORRECT ENTITY NAME, NO LATER THAN AUGUST 7, 2026. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.